

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

October 24, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Pierson and Ms. Ash, agenda item #19(a) was removed from the Consent Agenda. Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Dr. Rinne, agenda item #18(a) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes"-- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 10, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, Rick Parish, Parks and Recreation Director, provided information regarding a voucher payable to AVI Engineering for design of a sewer system at Prairie View Golf Course. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14 and 23, T.13N., R.67W., 6<sup>th</sup> P.M., Laramie County, Wyoming (generally located between Interstate 25 and Clear Creek Parkway, south of West College Drive). Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (#3935)

Ordinance amending certain Chapters and Sections of Title 17, Zoning, of the Cheyenne City Code by Repealing and Re-enacting Section 17.80.080, Signs, of Chapter 17.80, P Public District. Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Discussion followed on language in Section 17.80.080 B. 5. b., indicating the maximum number of times (3) a message on the electronic message center can change within a 24-hour period and whether this would be adequate relative to a proposed new electronic bill board for the Civic Center. Mr. Collins moved to amend by replacing the language in Section 17.80.080 B. 5. b. that states "Message displays shall change a

maximum of 3 times per 24-hour period” to instead read “Message displays shall change a minimum of every 8 seconds,” seconded by Mr. Pierson. Comments followed on other limitations contained in subsection 5., and potential requests in the future for a similar message display timing change for commercially zoned areas. Upon inquiry, Matt Ashby, Planning Services Director, provided information on the timing of digital message changes relative to a concern involving driver distraction, and confirmed the proposed ordinance only applies to those districts zoned as P - Public. Discussion included the timing of display message changes; potential future effect of the amendment involving commercially zoned districts; new electronic sign for the Civic Center, and concern with driver distraction if multiple signs are located in the same vicinity. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen and Dr. Rinne voting “no”. Comments followed regarding a concern with setting a precedent pursuant to the amended language and potential future similar requests for commercial districts, and required distances (feet) from the right-of-way (ROW) for signs as listed in Table 1. contained in the proposed ordinance. Dr. Rinne moved to amend Table 1. to delete the two rows in the table labeled as 5 or less (feet) and 5-10 (feet) from the right-of-way, seconded by Mr. Allen. Discussion followed regarding distance of signs from the ROW and location of the sign that’s proposed for the Civic Center. Upon inquiry regarding ROW distance of the Civic Center sign, Dru Rohla, Civic Center Director, estimated the current Civic Center marquee, which is where the new sign will be located, is probably approximately 10' or more away from the ROW, and Mr. Ashby provided information on how ROW distance is typically measured and that they would measure the ROW distance for the Civic Center sign prior to final reading of the ordinance. Discussion continued on effect of the previously approved amendment, further review for clarification of the intent of the proposed amendment, and whether there were any known signs within the P Public district that may conflict with the proposed amendment involving ROW distance. Motion to amend failed. Voting “no” -- all members of the governing body with the exception of Dr. Rinne voting “yes”. Main motion as amended carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen and Dr. Rinne voting “no”.

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Third Filing, a replat of Lots 2-5, Block 2, Saddle Ridge Subdivision, Cheyenne, Wyoming (located at the northeast corner at the curve of Gunsmoke Road and Countryside Avenue, east of Saddle Ridge Trail). Motion (per Consent Agenda) carried. (#5322)

Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated at 5618 Townsend Place and described as the north 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming (generally located at the southwest corner of Townsend Place and east Carlson Street. Mr. Collins moved to adopt, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. (#5323)

Resolution authorizing the City of Cheyenne, through the City Attorney’s Office, to commence condemnation proceedings to obtain real property located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project (Phase 4) (2003-2006, 2007-2010 1% Sales Tax).(Postponed from Oct. 10, 2011). Nathan Beauheim, Assistant City Engineer, advised a meeting had been held with the attorney representing the property owner discussion included property appraisals, contamination on the property and DEQ’s involvement, and the concept of possible consideration of a re-arrangement of the intersection design. He requested consideration that the resolution be postponed to Nov. 28, 2011. Carolyn Dennis expressed her concerns with the use of

eminent domain for this type of purpose and suggested the City consider negotiations to purchase the entire property and waiting to purchase, if necessary, until funding is available and then proceeding with the intersection project. Alex Davison, attorney representing the owners of the property, advised they have had the opportunity to meet with City officials to discuss issues and that some progress has been made, and spoke in favor of a postponement. He commented on the incentive on the part of the property owner to negotiate in good faith to resolve the matter, reviewed letters sent to the City involving negotiations to try to resolve issues and stimulate discussions. He provided updated information on the property appraisal they had received and contamination and DEQ involvement, including the remediation program, and stated they have engaged the services of a round-about expert to provide possible intersection design options. During discussion and upon inquiry, Mr. Davison provided information on the property appraisal relative to ground contamination and remediation efforts; monitoring of underground wells and possible re-location of same; DEQ's possible remediation time frame, and status of current participation in DEQ's remediation program and affiliated fees. Comment followed regarding staff follow-up with DEQ with regard to remediation time frames and consequences if contaminated soils and wells are disturbed during the reconstruction project. Reporting for Finance Committee, Mr. Valdez stated there was no recommendation on the item from the Committee. Mr. Collins moved to adopt, seconded by Ms. Broyles. Upon query, Mr. Beauheim clarified his previous request was to postpone the item to the Nov. 28, 2011 City Council meeting, and reviewed construction season effect (possible 2 season instead of 1 season project) if the item were postponed. Mayor Kaysen explained if the resolution was postponed to the Nov. 28<sup>th</sup> meeting, it would then be referred to the Dec. 5<sup>th</sup> Finance Committee meeting, returning to City Council for consideration at its Dec. 12<sup>th</sup> meeting. Mr. Valdez moved to postpone to Nov. 28, 2011, seconded by Ms. Broyles. Mr. Davison commented in favor of the motion to postpone. Discussion followed on the purpose of the resolution and whether the reason(s) to postpone was application to the intent of the resolution, and postponement allowing time for further negotiation discussions to, hopefully, avoid condemnation action. Motion to postpone carried. Voting "yes" -- Mr. Allen, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting "no" -- Ms. Ash, Mr. Brown, Mr. Collins and Mr. Spiker.

[CA] Resolution approving Outside User Water/Sewer Services, by User's Agreement, with Swan Ranch Properties, LLC, Lot 4, Block 1, Swan Ranch Rail Park, 3<sup>rd</sup> Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution approving Outside User Water/Sewer Services, by User's Agreement, with TMH Wyoming Properties, LLC, Lot 3, Block 1, Swan Ranch Rail Park, 1<sup>st</sup> Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution approving Outside User Water/Sewer Services, by User's Agreement, with Knife River Corporation - Northwest, Lot 2, Block 1, Swan Ranch Rail Park 1<sup>st</sup> Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution approving outside User Water/Sewer Services, by User's Agreement, with Cheyenne LEADS, Lot 1, Block 2, Swan Ranch Rail Park, 2<sup>nd</sup> Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution affirming the City of Cheyenne's commitment, as stated in the City's August 27, 2008 letter to the State of Wyoming Department of State Parks & Cultural Resources, attached to this

Resolution as Exhibit A, to use the proceeds of any sale of land described as Lot 2, Block 1, Cahill Park Addition, Parks & Recreation facilities and to assist in the development of future Parks & Recreation facilities within the City's park system -- referred to Finance Committee (sponsors - Mr. Brown and Ms. Broyles).

County Preliminary Plat for Swan Ranch Rail Park, 5th Filing, portions of Sections 10, 11, 14, 15, 16, 21, 22, 23, 27, and 28, all in T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of I-25, between Otto Road and High Plains interchange). Mr. Collins moved to acknowledge receipt, seconded by Ms. Broyles. Mr. Collins moved to amend by substitute map, and substitute staff report that includes staff recommendations #6 through 11 which must be satisfied prior to approval of subsequent final plats, seconded by Ms. Broyles. Motion to amend carried. Voting "yes" -- all members of the governing body. Appreciation was expressed that the substitute map reflects future arterial and major roadways with helpful information for future area development, and comment was made in support that similar information should be provided on other large projects involving the platting process. Main motion as amended carried. Voting "yes" -- all members of the governing body.

Cooperative Agreement between the City of Cheyenne, Laramie County, Wyoming, and United Way of Laramie County, to create a Human Services Advisory Council to coordinate and refine Human Services funding and delivery systems (2011-2014 1% Sales Tax). Connie Sloan Cathcart, Executive Director, United Way of Laramie County, stated she was present to answer any questions. Upon inquiry, Ms. Sloan Cathcart noted out of the total amount of funding received for United Way there is an 88% return to the community with 12% maintained for administrative and indirect costs; explained that \$10,500 in annual funding, each from the City Council and County Commissioners, was approved through the 5<sup>th</sup> penny sales tax process, and briefly explained the coordinated services process the Advisory Council provides involving program applications, and review and recommendations for funding of human services in the community. Brief discussion included the percentage of funds for administration, and funding amounts provided by the City and County. Mr. Valdez moved to approve in an amount not to exceed \$42,000.00 [for years 2011 through 2014], seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Allen, Ms. Ash and Dr. Rinne voting "no". (#5742)

[CA] Agreements between the City of Cheyenne and the following community Human Services Agencies: Cheyenne Housing Authority and Peak Wellness Center, Inc., Alcohol Receiving Center. Motion (per Consent Agenda) carried (amount not to exceed \$121,945.00). (#5743-#5744)

[CA] Agreements between the City of Cheyenne and the following community Human Services Agencies: American Red Cross; Boys and Girls Club of Cheyenne, Wyoming, Inc.; CASA of Laramie County; Cheyenne Health and Wellness Center (Dental Access, Unified Human Service Eligibility and Cheyenne Area Centralized Pharmacy); Climb Wyoming; Comea, Inc.; Connections Corner; Family Promise; Green Path; Meals on Wheels of Cheyenne, Inc.; Needs, Inc.; Peak Wellness Center, Inc.; Safe Harbor, A Children's Justice Center; Safehouse Services, Inc.; Special Friends of Cheyenne; Southeast Wyoming Foster Grandparent Program (Helping Youth and Helping Community); Southern Wyoming Retired and Senior Volunteer Program; Wyoming 2-1-1, Inc.; Wyoming Family Home Ownership and Wyoming Senior Citizens, Inc. (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$250,000.00). (#5745-#5767)

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Downtown Development Authority for parking spaces in the downtown parking garage. Motion (per Consent Agenda) carried (\$52,920.00 annual revenue to City). (#5768)

[CA] Cooperative Agreement between the City of Cheyenne and the State of Wyoming, Department of Environmental Quality, to purchase a 2010 EPA emissions compliant landfill grader for the City of Cheyenne landfill (Solid Waste Management fund). Motion (per Consent Agenda) carried. (#5769)

[CA] Amendment No. 1 to Community Based Family Support and Preservation Grant Contract No. 5644 between the City of Cheyenne, Youth Alternatives, and the Wyoming Department of Family Services, Protective Services Division, for counseling services to families involving youths returning from out-of-home placement -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Transit Division and Wyoming Department of Health, Aging Division to provide supportive services to persons 60 years or older (Title III-B Program Grant). -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5520, Lease Agreement between the City of Cheyenne, acting by and through its Board of Public Utilities (BOPU), and Swan Ranch Development for Swan Ranch Development to encompass additional property to construct and donate to BOPU a private water and sanitary sewer system that runs through the Swan Ranch Rail Park -- referred to Finance Committee.

Amendment No. 4 to Contract No. 4563 between the City of Cheyenne and William A. Gross, Managing Partner, Wyoming Cattle Co., LLC, for grazing lease on the Belvoir Ranch. Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry, Vicki Nemecek, Assistant Public Works Director, clarified the original lease allows the City to have use of the property for other activities that do not conflict with the grazing provisions, noting the City decides which areas will be approved for grazing. She reviewed information pertaining to the moving of cattle to various pastures at times when work is being conducted; circumstances which may affect the number of cattle; and that the original contract specifies that livestock will be yearlings. Motion carried. Voting "yes" -- all members of the governing body. (#4563)

[CA] Consideration of Bid #R-8-12 for furnishing one new 2011-2012 articulating overcenter aerial device for the Forestry Division (2011-2014 1% Sales Tax and General fund) (Postponed from Oct. 10, 2011). Motion (per Consent Agenda) carried.

Consideration of Bid #R-2-12 for the sale of surplus property described as the south 66 feet of Lots 9, 10 and 11, Block 666, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 515 Morrie Avenue). Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Spiker moved to accept the bid from Tora L. Curry and Scott C. Parson in the amount of \$46,234.82, seconded by Mr. Collins. Upon inquiry about selling surplus property and whether a reserve bid price can be set, Dan White, City Attorney, reviewed generally the provisions of Wyoming Statutes when utilizing the bid process, stating City Council may reject bids if they are not satisfied with the bid amounts, and advised he did not recall any language with regard to setting a reserve bid amount. Comments followed with regard to the amount

the City paid to acquire the properties (City Clerk note: Also refer to affiliated following two agenda items) vs. highest offer received, and future consideration of setting a reserve price. Motion failed (due to a tie vote). Voting “yes” -- Ms. Broyles, Mr. Collins, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting “no” -- Mr. Allen, Ms. Ash, Mr. Brown, Mr. Pierson and Dr. Rinne.

Consideration of Bid #R-3-12 for the sale of surplus property described as All of Lots 19 and 20, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 916 E. 5th Street). Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Valdez moved to accept the bid from Tora L. Curry and Scott C. Parson in the amount of \$43,398.45. Motion died due to the lack of a second to the motion. (City Clerk note: Also refer to affiliated previous and the following agenda items)

Consideration of Bid #R-4-12 for the sale of surplus property described as All of Lots 21 and 22, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 922 E. 5th Street). Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Valdez moved to accept the bid from Tora L. Curry and Scott C. Parson in the amount of \$51,395.25, seconded by Ms. Broyles. Upon inquiry, Mayor Kaysen advised appraisals were conducted on all 3 properties and each appraised value was higher than bid amounts received, and Nathan Beauheim, Assistant City Engineer, stated bidding was through a sealed bid process and selling the properties would relieve the City of landlord/property management responsibilities and expenses. Upon inquiry regarding whether the City could donate the property for a good cause, Dan White, City Attorney, discussed state constitutional provisions and concern that the City may not have the legal ability to donate the properties, and commented on the City’s fiduciary responsibility to taxpayers. Mr. Beauheim stated money received from the property sales may be used for future right-of-way acquisition purposes. Discussion included history of property acquisition by the City in conjunction with the Norris Viaduct project; surplus and bid process that was followed; property ownership costs to the City, other potential property uses, and current condition of the structures situated upon the 3 properties. In response to query on structural conditions, Mr. Beauheim provided information on the age of the buildings relative to electrical/heating systems, roof conditions, etc., and stated sale of the properties, if approved, would be through a quitclaim deed and that the properties were offered in an “as is” condition. Discussion included appraised property value amounts and elements considered during the appraisal process; difference in the amount of appraised property values vs. highest bids received; possible re-bidding process, and whether the properties could be utilized through City Housing and Community Development programs. Motion failed (due to a tie vote). Voting “yes” -- Mr. Brown, Mr. Collins, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting “no” -- Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Pierson and Dr. Rinne. (City Clerk note: Also refer to affiliated previous two agenda items)

[CA] Consideration of Bid #R-12-12 for furnishing 70 Panasonic Toughbook 31 lap top computers for the Police Department (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held November 14, 2011 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the NE1/4 of Section 1, T.13.N., R.67W. of the 6<sup>th</sup> P.M., Laramie County, Wyoming (generally located north of and adjacent to West Lincolnway and east of and adjacent to the BNSF

Railroad).

Announcement was made of a Public Hearing to be held November 14, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive input and comments for gathering information on possible projects for the inclusion on the 1% Specific Purpose Tax election ballot, which has been scheduled for August 21, 2012.

Announcement was made of a Public Hearing to be held November 14, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive comments on the proposed sale of real property owned by the City of Cheyenne, described generally as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of Windmill Road and Dell Range Boulevard) to Menard, Inc. which would generate economic development benefits for the City of Cheyenne pursuant to Wyo. Stat. §15-1-112 (b). Estimated proposal value is \$7.2 million.

Announcement was made of a Public Hearing to be held November 14, 2011 at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for The Peak Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, 300 E. 8th Avenue, Cheyenne, Wyoming.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:43 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
November 3, 2011